

Attendance Allowance (AA)

What is Attendance Allowance?

Attendance Allowance is a non-taxable weekly benefit paid to people of State Pension age who need a lot of looking after because they have an illness or disability.

Important points about Attendance Allowance

- It is not affected by your income and savings, or those of a partner
- It does not reduce other Social Security benefits. In fact getting Attendance Allowance may entitle you and your carer (if you have one) to extra Pension Credit, Housing Benefit or Council Tax Support, or may mean that you qualify for them for the first time.
- If you qualify for Attendance Allowance and have someone who regularly looks after you, they may be able to claim Carer's Allowance. See our Carer's Allowance fact sheet for further information.
- If you go into hospital or a residential care home your Attendance Allowance may stop. This payment should be reinstated if you return home.
- Attendance Allowance is paid to the person who needs the care, and can be spent in any way they choose.
- It doesn't matter how much care you receive, the Attendance Allowance award is based on the care you need.

How to qualify for Attendance Allowance

To qualify for Attendance Allowance you must be of State Pension age or over and have needed help for at least six months. It is paid at two rates depending on how much care you need.

Lower Rate - £73.90

To qualify for the lower rate you must need help frequently during the day **or** night with things such as:

- Getting in/out of bed and settling in bed
- Going to the toilet/commode
- Bathing and showering
- Dressing or undressing
- Moving around indoors
- Communicating with the help of another e.g. going to social events, dealing with correspondence
- Eating or drinking
- Taking medicines

You may also qualify if you need someone with you because:

- You are unsteady on your feet and are liable to fall
- You suffer from fits or blackouts and may injure yourself
- You cannot hear very well
- You are very forgetful and find it difficult to make decisions, so need someone to keep an eye on you.

Note: If you need someone to do your shopping and household cleaning this will not count towards qualifying for the allowance.

Higher Rate - £110.40

To qualify for the higher rate you must need the kind of care described for the lower rate both during the day **and** night. This means needing help with things like using the toilet or someone to be with you day **and** night to avoid you harming yourself or someone else.

If you need someone to be watching over you at night, to get the Allowance they have to be awake for at least 20 minutes or be getting up at least twice during a night to check on how you are.

Mr Grant is 80 years old and needs someone with him during the day and night because he has a tendency to wander off and cannot find his way home. His daughter and brother help his wife to take it in turns to stay with him during the day and to stay awake at night to ensure he is safe. He qualifies for the higher rate of Attendance Allowance.

People who are terminally ill

There are special rules that apply to people who may not have longer than one year to live. Applying under these special rules mean you automatically get the higher rate of Attendance Allowance. This applies whether you need help or not. Under these rules, you do not need to have required help for the last 6 months and claims are also dealt with more quickly. There is a section in the claim pack if you are eligible to apply under these special rules.

How to apply

To obtain the claim pack you need to phone the Attendance Allowance helpline on 0800 7310122 (Textphone 0800 7310317). Lines are open Monday to Friday 8am to 6pm.

If you are refused Attendance Allowance

If you are refused Attendance Allowance or are only awarded the lower rate and you think their decision is wrong, you have the option to challenge this. You can do this by asking them to reconsider a decision they have made either verbally over the phone or in writing. This is

called a 'mandatory reconsideration' and must be requested within 1 calendar month of receiving the decision notice.

If you are refused and/or disagree with the decision at the 'mandatory reconsideration stage' you can appeal to an independent tribunal. For more information on this, see our fact sheet 'Challenging a benefits decision' which is available on our benefit web pages at www.nottinghamshire.gov.uk

If you are awarded Attendance Allowance

Don't forget to ask if you or your carer are entitled to any other Social Security benefits.

If you qualify for Attendance Allowance you may be entitled to extra Pension Credit, Housing Benefit and Council Tax Support or qualify for these for the first time. If you have a person caring for you, they may also be able to claim Carer's Allowance. See our fact sheet 'Carer's Allowance' which is available on our benefit web pages at www.nottinghamshire.gov.uk for more information.

If you need further advice you can contact Nottinghamshire County Council for more information using the details provided below.

Contact information:

Phone: 0300 500 80 80

Monday - Friday, opening times may vary. Calls are charged at local rate.

Email: enquiries@nottscc.gov.uk

Website: www.nottinghamshire.gov.uk

Phone 0300 500 80 80 if you need the information in a different language or format.

The Council is committed to protecting your privacy and ensuring all personal information is kept confidential and safe. For more details see our general and service specific privacy notices at: <https://www.nottinghamshire.gov.uk/global-content/privacy>